

This

**FIFTH AMENDMENT TO
THE HERROLD LIVING TRUST**

prepared for

STEPHEN GEORGE HERROLD

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FIFTH AMENDMENT TO THE HERROLD LIVING TRUST

Preamble

STEPHEN GEORGE HERROLD and REBECCA MUNN HERROLD were the Trustors of the HERROLD LIVING TRUST created under that certain declaration dated July 11, 2001. REBECCA MUNN HERROLD is now deceased. STEPHEN GEORGE HERROLD is the Trustee duly appointed and acting under and by terms of that Trust.

Prior to the death of REBECCA MUNN HERROLD, the aforementioned trust was the subject of two amendments respectively labeled FIRST AMENDMENT and SECOND AMENDMENT. Subsequent to the death of REBECCA MUNN HERROLD the aforementioned trust was amended by order of the Santa Clara County Superior Court in Case No. 1-14-PR-174927. Pursuant to the provisions of Article Four, Section 3.b. as amended by said court order, the undersigned retains the right to amend the aforementioned trust by the following language:

After the death of the first of us the Surviving Trustor may at any time or times amend or revoke any provision of the Trust, in whole or in part.

The Trust was subsequently amended by the FOURTH AMENDMENT, dated January 22, 2016. The Trustor now wishes to exercise that right of amendment and to that end hereby amends that declaration in the terms stated below. Consent of the Trustee to this amendment is attached hereto.

REVOCATION OF FOURTH AMENDMENT

By this document, the Trustor hereby revokes the FOURTH AMENDMENT in its entirety.

AMENDMENT TO ARTICLE SIX, SECTION 2

Article Six, Section 2 is amended to hereafter read as follows:

Section 2. Estate Planning Letter or Memorandum

After the death of STEPHEN GEORGE HERROLD, my Trustee shall deliver to ELIZABETH KANNEGAARD all of trustor's personal property, other than automobiles, for the purpose of distribution in accordance with instructions I have given her. By way of further instruction, my Trustee shall deliver possession of Trustor's cello to her for the express purpose of hand delivering it to the UNIVERSITY OF MIAMI, SCHOOL OF MUSIC.

AMENDMENT TO ARTICLE SIX, SECTION 4

Article Six, Section 4 is amended to read as follows:

Section 4. Specific Distribution of Trust Property

Our Trustee shall make the following specific distributions of trust property from the Contributive Share of the indicated Deceased Trustor:

a. Specific Distribution to CLARICE MUNN BURKHART A.K.A. SHAWNA HARRINGTON

Upon the death of STEPHEN GEORGE HERROLD and REBECCA MUNN HERROLD, our Trustee shall distribute fifty thousand dollars (\$50,000) to CLARICE MUNN BURKHART A.K.A. SHAWNA HARRINGTON, outright and free of trust. If such beneficiary should die prior to the time that this specific distribution is directed to be made, this specific distribution shall lapse and our Trustee shall administer this specific distribution in accordance with the Articles that follow. All expenses, claims, liens, encumbrances and taxes relative to this specific distribution shall be paid from the specific distribution of the beneficiary who receives this specific distribution.

AMENDMENT TO ARTICLE ELEVEN

Article Eleven of that declaration is amended to read as follows:

Article Eleven - Distributions to Beneficiaries

Section 1. Division of Trust Property Into Shares

Upon the death of the Surviving Trustor, our Trustee shall divide the Survivor's Balance, the Family Balance, and the Marital Balance, if any, (or any trusts into which such balances may have been divided) into separate and equal shares (and for purposes of determining such division and subsequent distributions shall take into account the exclusion of any descendant as may be directed in Article One) as follows:

<u>Beneficiary Name</u>	<u>Share</u>
UNIVERSITY OF MIAMI, FROST SCHOOL OF MUSIC, FEIN #59-0621158 * TO BE USED FOR STUDENT SCHOLARSHIP FUND	100%

In the event an individual beneficiary named immediately above should die while there are assets remaining in such individual beneficiary's trust share, our Trustee shall hold, administer, and distribute the share for such beneficiary as provided under the terms of such share. In the event a named individual beneficiary predeceases us leaving no descendants or the terms of such share lapse without further direction, then such lapsed share shall be reallocated among the remaining individual beneficiaries named in this Section (if any), in accordance with each such remaining individual beneficiary's respective percentage of the total interests of all such remaining individual beneficiaries. If there are no remaining individual beneficiaries, such share shall be reallocated among

the other remaining beneficiaries in accordance with each remaining beneficiary's respective percentage of the total interests of all remaining beneficiaries. If any beneficiary named in this Section is a "class" of individuals or organizations, such class shall be treated as a single beneficiary for purposes of such reallocation. If there are no remaining beneficiaries under this Section, then such share shall be administered as provided in the Articles that follow.

In the event a charitable organization is named as a beneficiary and such organization is no longer in existence or no longer qualifies as a tax-exempt organization under Sections 170(c), 2055 and 2522 of the Code, our Trustee shall distribute the share for such charitable organization to such charitable organization or organizations as our Trustee, in our Trustee's discretion, determines most closely matches our charitable intent. If our Trustee fails to distribute this share due to the lack of a qualified tax-exempt beneficiary, this share shall lapse and be reallocated among the remaining beneficiaries as provided in the paragraph immediately above.

Each share shall constitute a separate and independent trust, and Exempt Trusts shall remain separate from Non-Exempt Trusts. The decisions of our Trustee as to the assets to constitute each such share or subshare shall be conclusive, subject only to the requirement that said shares or subshares shall be of the respective values.

The trust shares shall be held, administered and distributed as follows:

a. Distribution and Administration of Trust Share for UNIVERSITY OF MIAMI, FROST SCHOOL OF MUSIC, FEIN #59-0621158

1. Distributions of Net Income

Our Trustee shall promptly pay to, or apply for the benefit of, the UNIVERSITY OF MIAMI, FROST SCHOOL OF MUSIC, the entire net income and principal of its trust share.

2. Purpose of this Gift

This gift shall be applied by the beneficiary to the Student Scholarship Fund.

3. Distribution If Organization Ceases to Exist

If the UNIVERSITY OF MIAMI, FROST SCHOOL OF MUSIC is not in existence or has been involved in a merger which is not a mere change in form at the time that a distribution is directed to be made, its interest in its trust share shall lapse and shall be administered in accordance with the provisions above dealing with lapsing charitable shares.

Section 2. Postponement of Distribution by Trustee

Notwithstanding any other provision of this Article, but subject to the provisions of Section 7 of Article Fifteen, if our Trustee determines that there is a compelling reason to postpone a distribution to a beneficiary, then our Trustee shall continue to hold and administer such beneficiary's share as follows:

a. Income Accumulated

The entire net income of such beneficiary's share shall be accumulated and added to principal on an annual basis if not distributed under the provisions of the paragraph immediately following.

b. Discretionary Payment of Principal

Our Trustee shall pay to, or apply for the benefit of, such beneficiary only as much of the principal and accumulated income of such beneficiary's share as our Trustee, in our Trustee's discretion, considers necessary for the proper health, education, maintenance and support of such beneficiary. Notwithstanding the preceding sentence, all discretionary distributions of principal and accumulated income to a Special Needs Beneficiary shall be governed by the provisions of paragraph c. immediately following.

c. Discretionary Payment of Principal for Special Needs Beneficiaries

Our Trustee shall apply for the benefit of a Special Needs Beneficiary such amounts of principal and accumulated income of the Special Needs Beneficiary's share as provided for under Section 3 of Article Fifteen.

d. Guidelines for Trustee's Discretion in Making Distributions

Our Trustee shall take into consideration, to the extent our Trustee considers it advisable, any other income or resources of such beneficiary known to the Trustee. When, in our Trustee's discretion, the compelling reason for the postponement of a distribution ceases to exist, our Trustee shall make available for withdrawal by such beneficiary the postponed distribution(s), which such beneficiary shall request by written instrument filed with our Trustee. Notwithstanding the preceding sentence, the termination of the postponement of distributions to a Special Needs Beneficiary shall be governed by the provisions under Section 3 of Article Fifteen. Furthermore, if the sole reason for the postponement of such beneficiary's distribution was due to such beneficiary not yet attaining the age of 25, our Trustee shall make the required distribution upon the beneficiary attaining such age, unless our Trustee determines, in our Trustee's discretion, that there are other compelling reasons to continue to hold and administer such beneficiary's share under the provisions of this Section.

e. Compelling Reason

A compelling reason includes, but is not limited to, the following:

1. The beneficiary is a Special Needs Beneficiary as defined under Section 3 of Article Fifteen;
2. The beneficiary is under the age of 25;
3. The susceptibility of the beneficiary to undue influence or duress by an individual or a group;
4. Alcohol or substance abuse by the beneficiary;
5. A pending marital separation or dissolution of marriage or divorce of the beneficiary;
6. Potential financial difficulty or a proven inability of the beneficiary to manage money;
7. A serious tax disadvantage upon distribution to the beneficiary;
8. Minimization of income, gift, estate, generation-skipping or other transfer taxes of a beneficiary, the beneficiaries or the trust; and
9. Substituting income, gift, estate, generation-skipping or other transfer taxes of the beneficiary for another.

f. Distributions Withheld

Any distribution may be postponed, including distributions of income or principal, whether in complete or partial termination of the beneficiary's share, one or more of a series of payments, or otherwise.

g. Evidence of a Compelling Reason

In connection with the foregoing, and in furtherance thereof, our Trustee is authorized to require the beneficiary to submit to our Trustee for review appropriate evidence as to the existence or non-existence of the compelling reason for which the postponement of a distribution of income or principal has been made or is being considered. Upon the request of our Trustee, such evidence shall include the submission to blood tests or similar tests showing the absence of alcohol addiction or substance abuse, said tests to be conducted and administered by licensed physicians approved by our Trustee.

h. Notice to Beneficiary; Request for Reconsideration

If our Trustee decides to postpone a beneficiary's distribution, then our Trustee shall provide written notification to such beneficiary of such postponement decision. Upon notification by our Trustee of the intent to postpone a distribution, such beneficiary may request reconsideration of such decision and submit to our Trustee such reports, information or other evidence as such beneficiary deems appropriate. If a beneficiary seeks the advice, counsel or representation of an attorney with regard to postponed distributions, then such beneficiary shall be entitled to reimbursement of the legal fees and costs incurred for such representation. Such reimbursement shall be limited to no more than one-half of one percent (0.5%) of the value of such beneficiary's share at the beginning of the calendar year in which such reimbursement is requested. A request for such reimbursement of legal fees and costs shall be limited to once every two calendar years.

Section 3. Beneficiary's Limited Power of Appointment

Unless the provisions for a specific beneficiary under this Article provide otherwise, any beneficiary under this Article shall have a limited power of appointment, exercisable by such beneficiary's Will, or a codicil thereto, specifically referring to and exercising this power of appointment, to appoint to, or for the benefit of, our then living descendants, some or all of the principal of such beneficiary's separate share as it exists at the death of such beneficiary. Such beneficiary may appoint trust assets under this limited testamentary power among the descendants of the Trustors and such beneficiary. If our Trustee receives no notice, within six (6) months after the death of such beneficiary, of the existence of a Will or codicil of such beneficiary that exercises this power of appointment, our Trustee may distribute the assets of such beneficiary's trust share as though this power of appointment had not been exercised and shall be conclusively presumed to have acted in good faith even if such Will or codicil is thereafter discovered. This limited testamentary power of appointment shall not be exercised in favor of such beneficiary's estate, the creditors of such beneficiary, the creditors of such beneficiary's estate, or in any way that would result in any economic benefit to such beneficiary.

Section 4. General Power of Appointment Over Non-Exempt Assets

Should a beneficiary die prior to the creation of his or her separate share of our Trust Estate or die subsequent to the creation of such share but before complete distribution of such share, and as a result of said death a portion of our Trust Estate would be subject to GST Tax but for the provisions of this Section, the beneficiary may, pursuant to a general power of appointment exercised in his or her last Will (but not in a codicil) and specifically referring to this power of appointment, provide for such share to pass to the creditors of such beneficiary's estate, in accordance with the terms set forth below. The asset value subject to such general power of appointment shall be the maximum amount, if any, which, when added to the beneficiary's net taxable estate (computed prior to said power), will

cause the federal estate tax marginal rate to increase until it equals the GST Tax marginal rate; but in no case shall such general power of appointment exceed the asset value of such beneficiary's share. To the extent the beneficiary does not effectively exercise the general power of appointment, the unappointed asset value shall be held, administered and distributed in accordance with the other provisions of our Trust Agreement.

Section 5. Failure to Exercise Limited Power of Appointment

Subject to the exercise of such beneficiary's Limited Power of Appointment under Section 5 above, if any beneficiary whose trust share is being held in trust subject to the provisions of this Article dies prior to complete distribution of such beneficiary's share, the beneficiary's interest in such trust share shall lapse, and our Trustee shall distribute and deliver the remaining balance of said trust to the descendants of said beneficiary, if any, per stirpes. If such beneficiary has no then living descendants, our Trustee shall distribute such beneficiary's trust share to our then living descendants, per stirpes. If we have no then living descendants, our Trustee shall distribute the balance of the trust share as provided in Article Twelve of our Trust Agreement.

Ratification of Other Terms of Trust

In every other respect, the Trustor confirms and ratifies the terms of the trust as stated in that certain declaration of Trust referenced above except as has previously been modified by any prior amendments.

No Contest Clause

If any devisee, legatee or beneficiary under this Trust, no matter how remote or contingent such beneficiary's interest appears, or any legal heir of the Trustor, or any person claiming under any of them, does any of the following, then in that event the Trustor specifically disinherits each such person, and all such legacies, bequests, devises and interests given to that person under this Trust or any amendment to it or any other trust agreement created by the Trustor at any time shall be forfeited and shall be distributed as provided elsewhere herein as though such person had predeceased the Trustor without descendants:

(a) Without probable cause (as defined by California Probate Code §1311(b)) files a direct contest (as defined by California Probate Code §21310) alleging the invalidity of this Trust or any one or more of its terms;

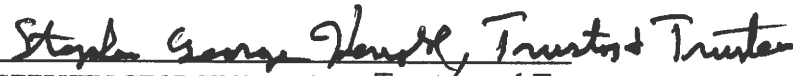
(b) Without probable cause, files a direct contest alleging the invalidity of any other document, or any one or more of the terms of such other document, which is in existence on the date this Trust is executed, such as a Will, deed, beneficiary designation, contract, agreement or other document executed by the Trustor constituting part of an integrated estate plan or executed by another for the benefit of the Trustor;

(c) Files any creditor's claim or prosecutes any action against this Trust for any debt alleged to be owed by the Trustor and such claim is later adjudicated by a court of competent jurisdiction to be invalid; or

(d) Files any pleading (as defined by California Probate Code § 21310(d)) challenging any transfer of property on the grounds that it was not the Trustor's property at the time of the transfer.

Expenses to resist any above contest or other attack of any nature upon any provision of this Trust or any amendment to it shall be paid from the trusts created hereunder as expenses of administration. In the event that any provision of this Section is held to be invalid, void or illegal, the same shall be deemed severable from the remainder of the provisions in this Section and shall in no way affect, impair or invalidate any other provision in this Section. If such provision shall be deemed invalid due to its scope and breadth, such provision shall be deemed valid to the extent of the scope or breadth permitted by law. The provisions of this Section shall not apply to any disclaimer by any person of any benefit under this Trust or amendment to it.

The undersigned has executed this FIFTH AMENDMENT to the HERROLD LIVING TRUST dated July 11, 2001 at Campbell, California on July 14, 2017.


STEPHEN GEORGE HERROLD, Trustor and Trustee

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

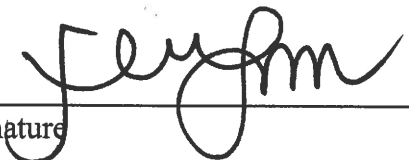
STATE OF CALIFORNIA

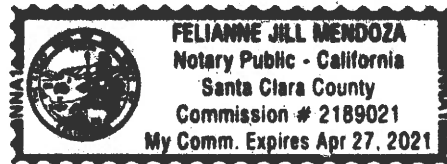
COUNTY OF SANTA CLARA

On July 14, 2017 before me, FELIANNE JILL MENDOZA, a Notary Public, personally appeared, STEPHEN GEORGE HERROLD who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal


Signature



Prepared by:

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